# Vendor Services Agreement — balanced form

VENDOR SERVICES AGREEMENT (Balanced / playbook-aligned form)

This Vendor Services Agreement ("Agreement") is entered into as of the Effective Date by and between Northwind Procurement Ltd. ("Customer") and the supplier identified on the Order Form ("Vendor"). Customer is engaging Vendor to provide software and related professional services described in one or more Order Forms. The parties intend this document to be a fair, market MSA.

1. DEFINITIONS

1.1 "Customer Data" means all data, content, and materials submitted to Vendor by or on behalf of Customer, including personal data relating to Customer's employees, suppliers, and end customers.

1.2 "Deliverables" means work product created specifically for Customer under an Order Form, excluding Vendor's pre-existing tools, libraries, and platforms.

1.3 "Fees" means the amounts payable under an Order Form, excluding taxes.

1.4 "Personal Data" has the meaning given in the GDPR and, where applicable, the CCPA.

2. SERVICES

2.1 Vendor shall provide the services described in each Order Form with reasonable skill and care, in accordance with this Agreement and applicable law.

2.2 Vendor shall maintain an uptime SLA of 99.9% measured monthly, excluding scheduled maintenance notified at least 48 hours in advance.

2.3 Subcontractors may be used for commodity hosting only. Vendor remains responsible for their performance and shall flow down confidentiality and data-protection terms.

3. FEES AND PAYMENT

3.1 Customer shall pay undisputed invoices within thirty (30) days of receipt. Vendor shall not charge late fees on amounts that Customer has reasonably disputed in writing.

3.2 Fees are fixed for the initial term. Any increase for a renewal term requires ninety (90) days' prior written notice and may not exceed three percent (3%).

3.3 There are no platform, infrastructure, or similar surcharges unless expressly set out in a signed Order Form.

4. TERM AND RENEWAL

4.1 This Agreement begins on the Effective Date and continues for the initial term stated in the Order Form.

4.2 Either party may elect not to renew by providing written notice at least sixty (60) days before the end of the then-current term.

4.3 Renewal terms, if any, are successive twelve (12) month periods on the same terms except for any price adjustment permitted by Section 3.2.

5. DATA PROTECTION AND SECURITY

5.1 Customer Data shall be stored and processed solely in the European Economic Area or in a country

subject to an adequacy decision under GDPR Article 45.

5.2 Vendor shall enter into Customer's data processing addendum, name subprocessors in a public list updated at least 30 days before a new subprocessor is used, and implement appropriate technical and organisational measures including encryption in transit and at rest.

5.3 Vendor shall notify Customer of a personal data breach without undue delay and in any event within seventy-two (72) hours of becoming aware of it.

5.4 Upon request, Vendor shall make available SOC 2 Type II and ISO 27001 reports under NDA.

6. CONFIDENTIALITY

6.1 Each party shall keep the other's Confidential Information confidential and use it only to perform this Agreement. The duty survives for three (3) years after termination, except for trade secrets, which survive while they remain trade secrets.

7. INTELLECTUAL PROPERTY

7.1 All work product created specifically for Customer under this Agreement shall be owned by Customer upon payment. Vendor retains its pre-existing tools and grants Customer a non-exclusive, perpetual licence to use them as needed to use the Deliverables.

7.2 Vendor does not receive a licence to use Customer Data to train or improve Vendor's products except as aggregated, de-identified statistics that cannot reasonably identify Customer.

8. LIMITATION OF LIABILITY

8.1 Vendor's aggregate liability arising out of this Agreement shall not exceed the fees paid by Customer during the twelve (12) months preceding the claim.

8.2 Neither party is liable for indirect, incidental, or consequential damages, except that the cap in Section 8.1 does not apply to fraud, willful misconduct, or infringement of Customer's intellectual property.

8.3 Each party shall indemnify the other only for third-party intellectual property infringement claims arising from the indemnifying party's materials.

9. TERMINATION

9.1 Customer may terminate this Agreement for convenience upon thirty (30) days' written notice. Upon termination, Vendor shall provide reasonable exit assistance for up to ninety (90) days at its then-current professional services rates.

9.2 Either party may terminate for material breach if the breach remains uncured for thirty (30) days after written notice.

9.3 On termination, Vendor shall return or securely delete Customer Data within thirty (30) days, except for copies retained as required by law.

10. GOVERNING LAW AND DISPUTES

10.1 This Agreement is governed by the laws of the State of Delaware. The parties retain the right to bring claims in a court of competent jurisdiction; neither party waives class-action rights.

10.2 Before filing a claim, the parties shall confer in good faith for fifteen (15) days.

11. GENERAL

11.1 Neither party may assign this Agreement without consent, except to an affiliate or in connection with a bona fide corporate reorganisation.

11.2 This Agreement, together with the Order Form and DPA, is the entire agreement and may be amended only in a writing signed by both parties.

IN WITNESS WHEREOF the parties have executed this Agreement as of the Effective Date.